

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DORA LUZ MACIAS SANCHEZ,

Petitioner

VS.

ADAN MIGUEL VELAZQUEZ BLAS,

Respondent

) Case Number: FDI-24-800170

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT, ATTORNEY
FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Dora Macias Sanchez (Wife) and Respondent Adan Velazquez Blas (Husband). The parties married on 9/30/2000. The parties agree they separated in December 2023, for a marriage of 23 years and 2 months. The parties have no minor children in common (their child Gabriel turned 18 on 10/6/2025). No Judgment has been entered in this case to date. Both parties are currently self-represented.
- 2) Per the Findings and Order After Hearing filed 12/20/2024, at the prior 12/17/2024 hearing, Judge Costin ordered Husband to pay Wife \$1,361 per month in temporary spousal support effective 1/1/2025 (based on Husband's statement that he earns \$7,366 per month as the CEO of a construction company and Wife's statement that she earns \$1,776 per month as a home health aide).
- 3) Per the Findings and Order After Hearing filed 3/21/2025, at the prior 3/20/2025 long-cause hearing, then Commissioner Luna maintained Judge Costin's order requiring Husband to pay

1 Wife \$1,361 per month in temporary spousal support and also ordered Husband to pay Wife
2 \$1,365 per month in child support. Judge Luna also denied Husband's request to impute
3 minimum wage to Wife. Judge Luna further ordered Husband to pay Wife \$5,500 in need-based
4 attorney's fees.

5 4) Per the Findings and Order After Hearing filed 8/26/2025, at the prior 8/21/2025 hearing, Judge
6 Costin adjudicated Husband's Request for Order filed 5/27/2025 asking the Court to modify the
7 current support orders based on his statements that he is on disability and not physically able to
8 work. Husband stated that he had been paying support from his savings which had been depleted.
9 The Court modified the child and spousal support orders and ordered Husband to pay Wife \$656
10 per month in guideline child support and \$176 per month in guideline spousal support, for a total
11 of \$832 per month (based on an imputation of \$3,323 in full-time minimum wage income to
12 Husband and a finding that Wife earns average monthly income of \$1,800).

13 5) On 9/12/2025, Husband filed a document entitled "Preliminary Declaration of Disclosure."
14 Husband included as an attachment an Income and Expense Declaration dated 9/2/2025 which
15 states that Husband is unemployed. Husband listed Wells Fargo business and personal checking
16 accounts with a balance of \$27,000 and \$100,000 in a Robin Hood account.

17 6) On 12/11/2025, Wife filed the instant Request for Order. Wife states Husband refuses to provide
18 her with current bank statements. Wife states Judge Costin admonished Husband in September
19 2024 that Mexico had no jurisdiction over the divorce, yet Husband continued with the divorce
20 proceeding in Mexico and received a final judgment in October 2024. Wife states Husband
21 claims he no longer needs to provide material updates regarding his finances to Wife for this
22 reason. Wife attached a declaration by her older adult son Arturo Macias dated 9/19/2025 who
23 states he saw Husband directing two of his employees to load a truck with construction debris on
24 9/7/2025. Arturo also states that "on a later date," he encountered Husband at a restaurant and
25 Husband told him that if he testified against him, they would "end up bad" which Arturo states he
26 understood as a threat. Wife attached a photograph which shows a "no stopping" posting for the
27 dates 10/15/2025 – 1/15/2026 which bears an address on Guerrero Street and which also states,
28 "Future General Construction Inc. (415) 373 – 8527." Wife further attached a document from the
29 IRS dated 10/14/2025 which states, "The payee information you reported on Form 1099 for tax

1 year 2024 may be incorrect.” Wife states this document shows that Husband was paying his
2 employees and reporting those payments to the IRS. Wife asks the Court to:

- 3 a. Order Husband to file and serve a current, complete, and accurate Income and Expense
4 Declaration.
 - 5 b. Order Husband to provide all current bank statements, investment account statements,
6 credit card statements, and business records, including but not limited to records of
7 Future General Construction.
 - 8 c. Order monetary sanctions against Husband for failure to comply with disclosure
9 requirements, including attorney’s fees and costs incurred by Wife.
 - 10 d. Order Husband to pay attorney’s fees for increased litigation caused by his misconduct
11 under Family Code sections 2030 – 2032 and 271.
 - 12 e. Order Husband to produce all contracts, agreements, and related documents for the
13 construction project associated with the city permit issued to Future General
14 Construction, including contracts with property owners, subcontractors, or clients.
 - 15 f. Draw an adverse inference that Husband has been working and earning income during
16 the period he claimed unemployment, based on evidence of construction work, city-
17 issued permits, and business activity.
 - 18 g. Impute income to Husband consistent with his earning capacity and prior unemployment
19 income.
 - 20 h. Reinstate or modify child and spousal support to reflect Husband’s actual income or
21 earning capacity.
 - 22 i. Order Husband not to transfer, hide, or dissipate assets until property disclosure is
23 provided.
 - 24 j. Order Husband not to close or move accounts without notice to Wife.
- 25 7) Wife’s 12/11/2025 Request for Order was first set for hearing on 1/16/2026 before Judge Gold.
26 At that hearing, both parties appeared in pro per. Per the Findings and Order After Hearing filed
27 1/28/2026, Judge Gold denied Wife’s request for discovery because Wife “did not submit the
28 required documents for the discovery motion.” Judge Gold also continued the hearing on Wife’s
29 requests for support and attorney’s fees to 3/17/2026 in Dept. 404.

- 1 8) At the 3/17/2026 hearing, the Court ordered the parties to appear in order for the Court to hear
2 additional argument from the parties. At the time the case was called, Husband was present, but
3 Wife was not. The Court continued the hearing to 4/9/2026 because it believed Wife had
4 appeared on Zoom at some point that morning and because a Spanish interpreter was not
5 available to translate for Husband.
- 6 9) On 3/30/2026, Husband filed a Responsive Declaration. Husband states he previously provided
7 bank and financial records for 2024 and 2025, including records through October and November
8 2025, and that Wife is seeking duplicative information. Husband states that the construction
9 project referenced by Wife was permitted in October 2025, work began in early November 2025,
10 and the project is being performed by licensed subcontractors. Husband states that no net income
11 has yet been realized and any funds received have been used to pay subcontractors and materials.
12 Husband states his anticipated compensation is approximately 10% and has not yet been received.
13 Husband states that their son Gabriel turned 18 on 10/6/2025 and he requested documentation
14 verifying that Gabriel is still enrolled and attending high school, but no documentation has been
15 provided. Husband states that in January 2026 he visited Downtown High School and was told
16 that Gabriel was completing the remainder of his coursework online, had accumulated 90 work
17 hours during that semester, and was expected to finish his coursework in February 2026. Husband
18 states that because Gabriel has not been a full-time high school student, he is not obligated to
19 continue to pay child support for Gabriel. Husband further asks the Court to strike or disregard
20 Exhibit F of Wife's Request for Order which consist of an IRS notice which was addressed to
21 Husband's business entity and was opened and submitted without his authorization. Husband
22 attached to his declaration: an Income and Expense Declaration stating that he is currently
23 earning \$0, a contract for Future General Construction dated October 2025, various subcontractor
24 agreements, bank statements for October – November 2025, various medical records for himself,
25 an English translation of a divorce certificate from Mexico (which Husband represents granted a
26 divorce of the parties on 12/13/2024, but does not address any support or property issue), and a
27 letter dated 1/22/2026 from Downtown High School which states: "Gabriel Vazquez... is taking
28 an online course with us and is halfway through. He should be done in February. Also he is
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1 submitting 90 work hours this semester and then he will be officially done. Gabriel will have a
2 ceremony in June.”

3 10) There is no Proof of Service on file for Husband’s 3/30/2026 Responsive Declaration.

4 11) At the 4/9/2026 hearing, Wife appeared but Husband did not. The Court continued the matter to
5 6/2/2026. The Court also ordered Husband to file a Proof of Service confirming that his
6 Responsive Declaration was served on Wife.

7 12) On 5/22/2026, Wife filed a Declaration which Wife states is “in response to Respondent’s
8 declaration.” Wife provided records which Wife states show the following projects and permits
9 associated with Husband: 2134 Lincoln Way, San Francisco — Application No. 202405142072,
10 permit triage date May 14, 2024, final inspection/completion July 15, 2024; 3562 Sacramento
11 Street, San Francisco — Application No. 202504245119, permit date April 24, 2025, stated
12 permit price approximately \$20,000, and records showing the project reached completion/final
13 stage around November 21, 2025; 4490 Mission Street, San Francisco — Application No.
14 202604300436, permit date April 30, 2026, final inspection/completion May 19, 2026; and
15 additional projects appearing in public records include 1675 Eddy Street, 651 37th Avenue, 332
16 Fell Street, and additional construction-related projects during 2023, 2024, 2025, and 2026. Wife
17 states that Husband stopped paying child and spousal support after October 2025. Wife
18 acknowledges that Gabriel turned 18 on 10/6/2025, but states that support can continue for a child
19 who is a full-time high school student. Wife states that Husband should not be permitted to
20 selectively use school-related information solely for purposes of avoiding support obligations.

21 Wife asks the Court to:

- 22 a. Order Husband to provide documentary proof of his claims that the construction project
23 referenced by Wife was performed by subcontractors and that funds received were paid
24 for subcontractors and materials and that his compensation from the project was expected
25 to be only 10%
 - 26 b. Order Husband to disclose all personal and business accounts, including any accounts
27 connected to Zelle, Venmo, Cash App, Apple Pay, PayPal, or similar payment
28 applications
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- c. Order Husband to provide current, complete medical records to support his claims that he cannot perform physical labor due to medical conditions
 - d. Order Husband to provide complete records relating to any Uber, Lyft, or other rideshare or delivery platform accounts operated by Husband because Husband previously represented that he purchased a vehicle so he could work for Uber
 - e. Order Husband to provide copies of his complete passport records showing repeated travel between the United States and Mexico
 - f. Deny Husband's request to strike the IRS notice which she states supports her need for further disclosure and investigation regarding Husband's business and potential reporting issues involving payments. Wife states the IRS notice was not improperly obtained as it was received at her home address.
 - g. Disregard any documents or proceedings from Mexico as Husband did not provide properly authenticated records, certified translations, and competent evidence establishing their reliability. Wife also argues this case is pending in California, both parties reside in the United States, and support obligations should be determined under California law and based on reliable evidence.
 - h. Maintain or reinstate appropriate child and spousal support orders
 - i. Order payment of arrears and any unpaid support obligations
- 2) There is no Proof of Service on file for Wife's 5/22/2026 Declaration.

B. Findings and Order

- 1) Regarding Wife's request that the Court "disregard any documents or proceedings from Mexico," although Wife states that Judge Costin previously admonished Husband that Mexico has no jurisdiction to resolve the issues in the parties' divorce case, there is no such statement in the Court's prior Findings and Orders After Hearing regarding this issue. Husband asserts that Mexico ordered the parties divorced as of 11/8/2024, yet Husband continued to litigate claims in this case (and this Court continued to make orders regarding child and spousal support) well past that date. Husband has also not provided evidence to date that Mexico has made any orders regarding support or property division. The Court does not have sufficient information before it to

1 make a finding that it does not have jurisdiction to continue making orders related to child and
2 spousal support. This Court will continue to make orders in this case on these grounds.

- 3 2) Husband provided evidence which appears to show that Gabriel has recently not been a full-time
4 high school student. Wife provided no proof that Gabriel has been a full-time high school student
5 between 10/6/2025 (when Gabriel turned 18) through the present date. The Court therefore finds
6 that Wife has not met her burden to establish that Husband's duty to pay child support continued
7 beyond Gabriel's eighteenth birthday pursuant to Family Code section 3901. Wife's request that
8 the Court order child support arrears effective October 2025 is denied. Similarly, Wife's request
9 that the Court modify child support retroactive to the date she filed the instant Request for Order
10 (12/11/2025) is denied.
- 11 3) Wife's request that the Court order Husband to provide documentation regarding his business
12 activities, earnings, financial holdings, medical condition, and travel is denied. If there is
13 additional information that Wife seeks, she must conduct discovery.
- 14 4) Regarding Wife's request to increase temporary spousal support based on purported additional
15 earnings by Husband, the Court finds that the limited evidence that Wife has presented to date
16 does not clearly show that Husband is earning more than the amount the Court previously
17 imputed to Husband (i.e., \$3,323 per month in full-time minimum wage income). Wife's request
18 to modify the income attributed to Husband for purposes of calculating temporary spousal
19 support is therefore denied without prejudice. As stated above, Wife may conduct discovery. If
20 she discovers additional admissible evidence that supports her claims, she may file a new Request
21 for Order.
- 22 5) However, the termination of child support does warrant a modification of temporary spousal
23 support. Effective 12/11/2025 (the date Wife filed her Request for Order), in accordance with the
24 XSpouse attached hereto and incorporated herein (which uses the same inputs for the parties'
25 incomes used in the XSpouse attached to the Findings and Order After Hearing filed 8/26/2025),
26 Husband is ordered to pay Wife \$306 per month in temporary guideline spousal support, which
27 Husband shall pay Wife by the 15th of each month.
- 28 6) The Court finds that Father owes to Mother temporary spousal support arrears in the amount of
29 \$197 for the period 12/11/2025 – 12/31/2025 and \$1,530 for the period 1/1/2026 – 5/31/2026, for

1 total temporary spousal support arrears due and owing of \$1,727. Husband shall pay this amount
2 plus an additional \$306 for temporary spousal support for June 2026 (for a total of \$2,033) to
3 Wife no later than 6/15/2026. Husband shall thereafter continue to pay to Wife temporary spousal
4 support of \$306 by the 15th of each month until further order of the Court or agreement of the
5 parties.

6 7) Regarding Wife's request that the Court order Husband "not to transfer, hide, or dissipate assets
7 until property disclosure is provided" and "not to close or move accounts without notice to Wife,"
8 the Court notes that the Standard Family Law Restraining Orders set forth in Family Code section
9 2040 remain in full force and effect.

10 8) Wife's requests for attorney's fees sanctions is denied as Wife has not presented evidence that she
11 has actually incurred attorney's fees in this matter to date.

12 9) Wife did not provide the information required by California Rules of Court, rule 5.427(b) to
13 support her request for need-based attorney's fees and therefore her request is denied without
14 prejudice to a new Request for Order which includes all of the necessary information.

15 10) Husband's request to strike or disregard Exhibit F of Wife's Request for Order is granted. The
16 Court will disregard Exhibit F of Wife's Request for Order.

17 11) The Court will prepare the Findings and Order After Hearing.
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Fixed Shares	Husband	Wife	Monthly figures	Cash Flow			
#of children	0	0	2026		Guideline	Proposed	
% time with NCP	0.00 %	0.00 %		Comb. net spendable	4370	4370	
Filing status	SINGLE	SINGLE	GUIDELINE	Percent change	0%	0%	
# exemptions	1 *	1 *	Nets(adjusted)	Husband			
Wages+salary	3323	1800	Husband	2768	Payment cost/benefit	-306	-306
Self-employed income	0	0	Wife	1602	Net spendable income	2462	2462
Other taxable income	0	0	Total	4370	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	56%	56%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	0	Total taxes	555	555
401(k) employee contrib	0	0	S.Clara SS	306	Dep. exemption value	0	0
Adjustments to income	0	0	Total	306	# withholding allowances	0	0
SS paid prev marriage	0	0	CS range: 0-0		Net wage paycheck	2656	2656
CS paid prev marriage	0	0			Wife		
Health insurance	0	0			Payment cost/benefit	306	306
Other medical expense	0	0			Net spendable income	1908	1908
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	44%	44%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	0	Total taxes	198	198
Qual bus income ded	0	0	SS	306	Dep. exemption value	0	0
Required union dues	0	0	Total	306	# withholding allowances	0	0
Mandatory retirement	0	0			Net wage paycheck	1500	1500
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Husband pays Guideline SS, Proposed SS